

26STCV05332 26STCV05332

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: PLAINTIFF MICHAEL VALLES' MOTION FOR AN ORDER PERMITTING SERVICE OF SUMMONS BY ALTERNATIVE MEANS

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Case Number: 26STCV05332 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

Michael Valles,

Plaintiff,

vs.

Farnaz Pourzanjani; and DOES 1
through 25,

Defendants.

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CASE NO: 26STCV05332

[TENTATIVE] ORDER RE: PLAINTIFF

MICHAEL VALLES' MOTION FOR AN ORDER PERMITTING SERVICE OF SUMMONS BY
ALTERNATIVE MEANS

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 19

Moving Party: Plaintiff, Michael Valles

Opposing Party: None

Notice: OK

Background Facts

Pleadings

Plaintiff Michael Valles sues

Defendants Farnaz Pourzanjani and Does 1 through 25 pursuant to a February 18, 2026, Complaint alleging claims of (1) Civil Code section 3346, (2) Conversion, and (3) Trespass.

Plaintiff's claims arise from

allegations that on or around December 8, 2025, Plaintiff's security footage captured Defendant, Plaintiff's neighbor, approaching Plaintiff's property presumably to inquire about removing or cutting the bamboo vegetation for Plaintiff's own benefit, but that Defendant instead intentionally entered onto, or reached into, Plaintiff's Property and cut, removed, and destroyed mature bamboo vegetation for the purpose of improving her own view, sunlight and aesthetic preferences.

b. Motion

Before the Court

On May 5, 2026, Plaintiff filed

this motion for leave to serve by publication, which the Court denied on June 16, 2026, for lack of a valid declaration supporting the Complaint's causes of action.

Now before the Court is Plaintiff

Valles's renewed motion for service by publication.

Motion for Order

Permitting Service by Alternative Means

a. Preliminary

Note

Plaintiff's notice of motion

notifies a motion seeking "an order permitting service of the summons and complaint on the following Defendant Farnaz Pourzanjani, by alternative means pursuant to Code of Civil Procedure sections 415.30 and 415.50 and Government Code section 6064." (Motion, p. 2.)

Service by means provided in

section 415.30 contemplates service by prepaid first-class mail or airmail with a return envelope and notice of acknowledgment of receipt by the party to be

served to complete service. Unlike section 415.50, no court authorization is required for service by mail under section 415.30.

b. Legal
Standard

Unlike other service methods, a plaintiff must obtain a court order prior to serving a defendant via publication. Strict compliance with the statutory requirements is required. (*County of Riverside v. Sup. Court* (1997) 54 Cal.App.4th 443, 450; see Code Civ. Proc., § 415.50.)

To obtain an order for publication, the plaintiff must show reasonable diligence in serving the defendant by some other manner. (Code Civ. Proc., § 415.50, subd. (a).) The plaintiff must establish reasonable diligence via the testimony of an individual with personal knowledge of the efforts to serve the defendant. (*Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 42.) "The term 'reasonable diligence' denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives, and by investigation of appropriate city and telephone directories, [voter registries, and assessor's office property indices situated near the defendant's last known location], generally are sufficient. These are the likely sources of information, and consequently must be searched before resorting to service by publication. Before allowing a plaintiff to resort to service by publication, the courts necessarily require him to show exhaustive attempts to locate the defendant, for it is generally recognized that service by publication rarely results in actual notice." (*Watts v. Crawford* (1995) 10 Cal.4th 743, 749, fn. 5.)

Likewise, the plaintiff must establish that a cause of action exists against the defendant via the testimony of an individual with personal knowledge of the underlying facts. (*Harris v. Cavasso* (1977) 68 Cal.App.3d 723, 726.) A verified complaint is "no substitute for the required affidavit, and the existence of a cause of action was a jurisdictional prerequisite to the issuance of the order for publication." (*Olvera, supra*, 232 Cal.App.3d at p. 42, fn. 9.)

Discussion

After review, the Court finds sufficient grounds for relief.

First, as with his last motion, Plaintiff provides sufficient evidence of reasonable diligence by registered process servers to serve summons on Defendant Farnaz Pourzanjani, with various outright refusals to accept service over intercom. (Motion, Comp. of Evid., Exhibits 1 [Affidavit of Due Diligence from Mohammad Rafiquzzaman for three attempts at service between March 2, 2026, and March 4, 2026, at 8782 Appian Way, West Hollywood, CA 90069, with one rejection of documents over intercom], 2 [Affidavit of Due Diligence from Javier Sanchez for six attempts at 8782 Appian Way, West Hollywood, CA 90069 between March 17, 2026, and March 25, 2026, with two rejections of documents over intercom].)

Second, Plaintiff supports his claims by sworn declaration establishing factual support for the allegations in the Complaint. (Compare Complaint, ¶¶ 5-15, with Motion, Valles Decl., ¶¶ 3-17.)

d. Conclusion

Plaintiff Michael Valles's motion for service by alternative means is accordingly GRANTED.

The Court will sign the proposed order filed with Plaintiff's motion, which provides for publication in the Los Angeles times for the statutorily required time. The Court will interlineate paragraph 7 to update dates for a hearing on the status of service by publication.

Plaintiff Michael Valles is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be

placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court